Abrar And 3 Others vs State Of U.P. And Another on 10 January, 2025

Author: Dinesh Pathak

Bench: Dinesh Pathak

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HIGH COURT OF JUDICATURE AT ALLAHABAD
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?Neutral Citation No. - 2025:AHC:6015

Court No. - 74

Case :- APPLICATION U/S 482 No. - 41144 of 2024

Applicant :- Abrar And 3 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Anshul Kumar Singhal

Counsel for Opposite Party :- Chandra Nath Bhatt,G.A.

Hon'ble Dinesh Pathak,J.

1. Heard learned counsel for the applicants, learned counsel for the opposite party no.2 as well as learned AGA for the State respondent and perused the record.

2. The applicant has invoked the inherent jurisdiction of this Court under Section 482 Cr.P.C. to quash the entire proceedings of Criminal Complaint Case No. 86 of 2024 (Pyarkali Versus Abrar and others) Under Section 3(1)(iv) of The Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 and Section 427, 447 I.P.C. pending before the Additional District Judge/ Special Judge (S.C./S.T. Act) Amroha including the Cognizance/Summoning order Dated 22.10.2022 passed by Additional District Judge/ Special Judge (S.C./S.T. Act) Amroha.

3. Respondent no.2 (complainant) has moved an application under Section 156(3) Cr.P.C. dated 29.5.2024, levelling allegation of property damage, criminal trespass, and hurling caste-related

abusive language upon the complainant and her family members with an averment that on 19.5.2024 at about 10.30 AM all the accused had dismantled the wall which was being constructed by the complainant on her land and uttered cast-related abusive language against her. Having been aggrieved with the said incident dated 19.5.2024 respondent no.2 has moved an application dated 19.5.2024 (on the same date) before the Station Officer, who has called upon both the parties on 20.5.2024. On the said date, while the complainant and her family members were going to ride a vehicle to return home, all the accused have badly thrashed to the first informant and molested her 16-year-old minor daughter, and threatened to kill the complainant. In support of her complaint, complainant has made a statement under Section 200 Cr.P.C. supporting the case of the complainant. Apart from that Renu (CW1) and Rina (CW2) have made their statement under Section 202 Cr.P.C supporting the case of the complainant.

4. Learned Additional District Judge/Special Judge (SC/ST Act), Amroha, having considered the averments made in the complaint and supporting affidavits under Section 200 and 202 Cr.P.C., has issued summons against the accused (applicant herein) vide order dated 22.10.2024, which is under challenge before this court.

5. Learned counsel for the applicant has advanced a solitary submission that the learned Special Judge (SC/ST Act) has issued the summons in a perfunctory manner without applying his mind and without properly considering the case of the complainant. It is next submitted that no proper inquiry has been conducted by the learned court before passing the summoning order. In support of his submission, learned counsel for the applicant has relied upon the case of Mehmood UL Rehman Vs. Khazir Mohammad Tunda and others, (2015) 12 SCC 420.

6. Learned counsel for the respondent no.2 and learned AGA have vehemently opposed the submissions advanced by the learned counsel for the applicant and contended that the learned Special Judge (SC/ST Act) has properly considered the case of the complainant and recorded his prima facie satisfaction with respect to the occurrence of the offence. It is next contended that in the facts and circumstances of the present case, prima facie, the complicity of the present applicant in the commission of crime cannot be ruled out. It is next contended that there is no illegality, perversity or irregularity in the order under challenge before this court. Therefore, the instant application may be dismissed as being misconceived and devoid on merits.

7. Having considered the rival submissions advanced by learned counsel for the parties and perusal of the record, it is manifested that the complainant has unequivocally supported the case as averred in the complaint in her statement under Section 200 Cr.P.C. It has clearly been stated that all the accused came at the property of the complainant and dismantled the boundary wall which was being constructed by the complainant. They have thrashed and uttered caste related abusive language against the present applicant and her family members. CW 1(Renu), who is also a victim subjected to the crime, has unequivocally supported the incident of dismantling the boundary wall and utterance of caste related abusive language against the complainant and the family members. Another witness Rina (CW2), who was also present on the spot, has supported the case of the complainant. There is no discrimination or contradiction in the statement of witness under Section 200/202 Cr.P.C. and the averments made in the complaint.

8. It is no more res integra that while passing the summoning order, the learned Magistrate is not required to discuss the case in detail or pass a speaking and reasoned order, however, he is only expected to apply his mind with regarding the prima facie occurrence of offence while passing the summoning order. Learned Magistrate, in its order dated 22.10.2024, has categorically stated that sufficient evidence is available on record to make out a prima faice case against the present applicant. He has further observed that summoning a person in a complaint case does not amount to a finding of guilt to the accused who has been summoned.

9. In the facts and circumstances of the present case, as mentioned in the complaint and supported by statements under Section 200 and 202 Cr.P.C. it cannot be said that, prima faice, no property damage is caused to the complainant as enunciated under Section 427 Cr.P.C. Moreover, the ingredients of criminal trespass as enunciated under Section 441 IPC are also, prima faice, attracted in the instant matter. Learned Magistrate has considered the case of the complainant in the light of the statement made under Section 200 and 202 Cr.P.C and came to the conclusion that sufficient evidence is available on the record to make out a, prima faice, occurrence of offence. Appearance of the parties in the police station on 20.5.2024 on the direction of Station In-charge, prima faice, support the incident allegedly took place on 19.5.2024 as mentioned in the complaint. Having considered the complaint coupled with the statement and witnesses, prima faice, the complicity of the present applicant in the commission of crime cannot be ruled out.

10. The innocence of the applicants, as is being tried to put forward by learned counsel for the applicants, is a matter of examination which can be adjudicated upon by the trial court more appropriately after appraising the evidence on record. At this juncture, this Court is not expected to conduct a mini trial to examine the innocence of the present applicants. I neither found any abuse of the process of law to the proceeding which has been challenged before this Court nor any justifiable ground to pass any order for the purposes of securing the ends of justice, therefore, there is no justification to exercise inherent power of this Court under Section 482 Cr.P.C. Record reveals that learned counsel for the applicants has raised disputed question of fact qua involvement of present applicants in the incident in question.

11. In exercise of inherent power under Section 482 Cr.P.C., this Court is not expected to analyze the factual evidence which is to be placed before the trial court. The power conferred under Section 482 Cr.P.C. is very specific and wide to secure the ends of justice or to prevent the abuse of the process of any Court or to make such orders as may be necessary to give effect to any order under this Code. No provision of this Code is deemed to limit or effect such inherent power of the High Court.

12. It has been held by the Apex Court in the cases of R.P. Kapur Vs. State of Punjab : AIR 1960 SC 866; State of Haryana and Ors. Vs. Bhajan Lal and Others : 1992 Supp (1) SCC 335; Trisuns Chemical Industry Vs. Rajesh Agarwal and Ors. : (1999) 8 SCC 686 3; M. Krishnan Vs. Vijay Singh & Anr. : (2001) 8 SCC 645; Joseph Salvaraj A. Vs. State of Gujarat and Ors. : (2011) 7 SCC 59; Arun Bhandari Vs. State of Uttar Pradesh and Ors. : (2013) 2 SCC 801; Anand Kumar Mohatta and Anr. Vs. State (NCT of Delhi), Department of Home and Anr. : (2019) 11 SCC 706 that exercise of inherent power of the High Court under Section 482 of the Code of Criminal Procedure is an exceptional one. Great care should be taken by the High Court before embarking to scrutinise the

complaint/FIR/charge-sheet in deciding whether the rarest of the rare case is made out to scuttle the prosecution in its inception.

13. In the case of Gian Singh vs. State of Punjab, (2012) 10 SCC 303, Hon'ble Supreme Court has made the following observation in Paragraph 61 which is quoted herein below :-

> "61. The position that emerges from the above discussion can be summarised thus: the power of the High Court in quashing a criminal proceeding or an FIR or a complaint in exercise of its inherent jurisdiction is distinct and different from the power given to a criminal court for compounding the offences under Section 320 of the Code. Inherent power is of wide plentitude with no statutory limitation but it has to be exercised in accord with the guideline en-grafted in such power viz.: (i) to secure the ends of justice, or (ii) to prevent abuse of the process of any court."

14. In Criminal Appeal No. 675 of 2019 arising out of SLP (Crl.) No. 1151 of 2018, Mohd. Allauddin Khan v. State of Bihar and others, 2019 (6) SCC 107, the Apex Court has held that the High Court had no jurisdiction to appreciate the evidences of the proceedings under Section 482 Cr.P.C. because where there are contradictions or the inconsistencies in the statements of the witnesses, is essentially an issue relating to appreciation of evidences and the same can be gone into by the Judicial Magistrate during trial, when the entire evidence is adduced by the parties. The same view has also been reiterated in judgment dated 31.07.2019 passed by Apex Court in Criminal Appeal No.1082 of 2019, arising out of SLP (Crl.) No.10762 of 2018, Chilakamarthi Venkateswarlu and Another v. State of Andhra Pradesh and Another.

15. In the case of Priti Saraf & anr. Vs. State of NCT of Delhi & anr. Criminal Appeal No(s). 296 of 2021 (Arising out of SLP(Crl.) No(s). 6364 of 2019] (judgment dated March 10, 2021) : 2021 SCC Online SC 206 the Apex Court while considering the powers under Section 482 Cr.P.C. has held as follows :-

> "23. It being a settled principle of law that to exercise powers under Section 482 CrPC, the complaint in its entirely shall have to be examined on the basis of the allegation made in the complaint/ FIR/charge-sheet and the High Court at that stage was not under an obligation to go into the matter or examine its correctness. Whatever appears on the face of the complaint/FIR/charge-sheet shall be taken into consideration without any critical examination of the same. The offence ought to appear ex facie on the complaint/FIR/charge-sheet and other documentary evidence, if any, on record."

16. The scope and ambit of the inherent jurisdiction of the High Court under Section 482 CrPC has been examined in detail by Hon'ble Apex Court in State of Haryana and Others Vs. Bhajan Lal and Others, (1992 Suppl (1) SCC 335). The relevant para is mentioned hereunder :-

> "102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a

series of decisions relating to the exercise of the extraordinary power under Article 226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of any court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised.

(1) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

(2) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code.

(3) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.

(4) Where, the allegations in the FIR do not constitute a cognizable offence but constitute only a non-cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

(5) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

(6) Where there is an express legal bur engrafted in any of the provisions of the Code on the concerned Act (under which a criminal proceeding is instituted to the institution and continuance of the proceedings and or where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party.

(7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due 10 private and personal grudge."

17. It has been further elucidated recently by Hon'ble Apex Court in Arnab Manoranjan Goswami Vs. State of Maharashtra and Others, 2020 SCC Online SC 964 where jurisdiction of the High Court

under Article 226 of the Constitution of India and Section 482 CrPC has been analysed at great length.

18. Further, in the case of M/s Neeharika Infrastructure Pvt. Ltd. Vs. State of Maharashtra and others reported in AIR 2021 SC 1918, Full Bench of the Apex Court while considering the powers of quashing under Section 482 of the Criminal Procedure Code and/or Article 226 of the Constitution of India has illustrated the circumstances under which quashing of a criminal case can be done and/or interim order can be granted.

19. Therefore, the disputed defence of the accused cannot be considered at this stage. In absence of any of the grounds recognized by the Supreme Court which might justify the quashing of complaint or the impugned proceedings, the prayer for quashing the same is not sustainable in the eyes of law. I do not see any abuse of the court's process either. The summoning court has been vested with sufficient powers to discharge the accused even before the stage to frame the charges comes, if for reasons to be recorded it considers the charge to be groundless. Moreover, the applicants have got a right of discharge under Section 239 or 227/228 Cr.P.C., as the case may be, through a proper application for the said purpose and they are free to take all the submissions in the said discharge application before the Trial Court.

20. In this conspectus as above, I do not find any justifiable ground to entertain the instant application and interfere in the order impugned passed by the court below.

21. As such, the instant application, being misconceived and devoid of merits, is dismissed with no order as to the cost.

Order Date :- 10.1.2025/vkg